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| CASE #      | CASE NAME                                     | HEARING NAME     |
|-------------|-----------------------------------------------|------------------|
| CVRI2403066 | DOE vs BEAUMONT<br>UNIFIED SCHOOL<br>DISTRICT | MOTION TO COMPEL |

**Tentative Ruling:**

This matter was continued to require the Plaintiff to meet and confer telephonically or in person regarding the depositions. A declaration was to be filed 5 days in advance of the hearing. As of 9/23/2026, there was no declaration on file. The Court requests an update from the parties at the hearing.

2.

| CASE #      | CASE NAME         | HEARING NAME                                          |
|-------------|-------------------|-------------------------------------------------------|
| CVRI2406350 | VILLA vs GONZALEZ | MOTION FOR SUMMARY<br>JUDGMENT ON CROSS-<br>COMPLAINT |

**Tentative Ruling:**

Underlying Complaint filed on November 14, 2024 by Plaintiff Adolfo Villa against Defendants Joseph Anthony Gonzalez, an individual; Parvinder Singh, an individual dba Romana Medical Transportation; Romana International, Inc., a California Corporation; United Care Trans, Inc., a California Corporation; Cal Care Trans, Inc., a California Corporation for (1) Negligence (Motor Vehicle); (2) General Negligence; and (3) Alter Ego.

Answer and Cross-Complaint filed by Cross-Complainant Adolfo Villa ("Cross-Complainant") against Cross-Defendants Joseph Anthony Gonzalez; Parvinder Singh; Romana Medical Transportation; Romana International, Inc.; United Care Trans, Inc.; and Cal Care Trans, Inc. for (1) Breach of Fiduciary Duty; (2) Negligence; (3) Breach of Contractual Duty to Defend; and (4) Bad-Faith – Unreasonable Failure to Defend.

On May 29, 2025, Cross-Defendants filed an Answer to the Cross-Complaint, asserting several affirmative defenses including assumption of risk. (SUF No. 42.)

\* \* \*

Cross-Complainant consulted Cross-Defendants on or about May 18, 2022, regarding vehicle and general commercial liability insurance for his fleet of 15 medical-transport vans. (Cross-Complainant's Cross-Complaint ("XC") ¶ 10). Cross-Defendants took Cross-Complainant's application for commercial automobile and general liability insurance and submitted it to Cluett Commercial Insurance Agency, Inc. ("Cluett"), which Cross-Complainant alleges was an agent for Accredited Specialty Insurance Company ("ASIC") with binding authority. (XC ¶11). After ASIC issued the policy, Cross-Defendants, through their employee Samantha Czavala, sent Cross-Complainant

a list of covered vehicles and approved drivers via DocuSign on May 19, 2022, which included Joseph Anthony Gonzalez. (XC ¶13; First Cause ¶33; Second Cause ¶52.) On June 7, 2022, Cluett or Cross-Defendants sent a Driver Exclusion to remove Ramon Viramontes and Gonzalez from the approved drivers, but Cross-Complainant refused to sign as to Gonzalez. (XC ¶14; First Cause ¶34; Second Cause ¶53).

On June 8, 2022, Cross-Defendants, through Czavala, proposed by email to Cluett that Gonzalez remain an approved driver if he attended driving school. (XC ¶15; First Cause ¶35; Second Cause ¶54). On June 23, 2022, the underwriter agreed Gonzalez could remain approved if he took a defensive driving course and paid an additional \$500, and Singh accepted those conditions the same day. (XC ¶16–17; First Cause ¶36–37; Second Cause ¶55–56). Cross-Complainant authorized Cross-Defendants to deduct the \$500 from his Romana account, but Cross-Defendants negligently failed to deduct or remit the \$500 premium to Cluett. (XC ¶18; First Cause ¶38–39; Second Cause ¶57–58) Cross-Complainant alleges Cluett never sent any notice that Gonzalez was unapproved to Cross-Complainant, Gonzalez, or Romana. (XC ¶19; First Cause ¶40; Second Cause ¶59).

On July 22, 2022, Cross-Defendants, through Czavala and acting as agent for Cluett, sent Cross-Complainant a revised approved driver list via DocuSign that still included Gonzalez. (XC ¶20; First Cause ¶41; Second Cause ¶60). On or about July 28, 2022, a General Change Endorsement removed seven drivers but did not remove Gonzalez from the approved list. (XC ¶21; First Cause ¶42; Second Cause ¶61). After Gonzalez's December 23, 2022, accident, Cross-Defendants asked Cluett to produce all endorsement requests through December 21, 2022, to confirm Gonzalez's approved status, and Cluett produced a list with no endorsement removing Gonzalez. (XC ¶24–25).

Cross-Complainant alleges Cross-Defendants breached fiduciary duties of diligence and faithful service under Insurance Code section 1733 by failing to remit the \$500 premium and by not acting to protect Gonzalez's approved status. (XC First Cause ¶32, ¶39–41). Cross-Complainant specifically alleged that Cross-Defendants should have advised "ASIC that any accidents occurring while not at work, in private vehicle, is not a valid reason only to exclude a driver or a commercial policy." (XC ¶¶ 31, 34, and 39) Cross-Complainant further alleges Cross-Defendants were negligent in failing to remit the \$500 premium and in performing their duties as Cross-Complainant's insurance agent. (XC Second Cause ¶51, ¶58–60, ¶62–66).

\* \* \*

Cross-Defendants now move for summary judgment/adjudication on each cause of action alleged in the Cross-Complaint, and request that the Court enter judgment in their favor. This Motion is made pursuant to CCP § 437c on the grounds that Cross-Complainant cannot establish one or more essential elements of any of his causes of action against Cross-Defendants, thus there are no triable issues of material fact with respect to any of Cross-Complainant's causes of action in the Cross-Complaint.

In support of this motion, Cross-Defendants submit:

- Memorandum of Ps &As
- Separate Statement of Undisputed Material Facts
- Declaration of Meredith M. Williams
- Compendium of Supporting Exhibits
- Proposed Order

In Opposition, Cross-Complainant contends that (1) Cross-Defendants have not met their burden because the motion attacks the wrong negligence theory, (2) the fiduciary duty theory cannot be summarily adjudicated on Cross-Def's abstract "ordinary agent" rule; (3) the negligent claim fits the California cases recognizing duty for requested coverage, misleading coverage communications, and assumed undertakings; (4) Cross-Def's causation argument starts too late in the causal chain; (5) Comparative fault and assumption of the risk cannot be established as a matter of law.

In support of the Opposition, Cross-Complainant submits:

- Memorandum of Ps & As
- Opposing Separate Statement
- Declaration of Parvinder Singh and attached Exhibits

In Reply, Cross-Defendants contend that (1) Cross-Complainant tries to bring in a negligence theory that is not part of the pleadings which frame the issues on summary judgment; (2) the alleged submission gaps are immaterial and do not create a triable issue; (3) the client-facing "Active Drivers" roster does not create coverage or a triable misrepresentation; (4) the opposition misreads California law and the record; and (5) comparative fault arguments do not preclude judgment where causation fails.

\* \* \*

## **Analysis**

### **I. Standard**

Summary judgment/adjudication is granted when a moving party establishes the right to entry of judgment as a matter of law. (CCP § 437c(c), (f)(1).) A defendant moving for summary adjudication bears the initial burden of proving that there is no merit to a cause of action by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (CCP § 437c(p)(2); *Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1037.) Once such a showing has been made, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826,

849.) The opposing party may not rely upon the allegations or denials in its pleadings, but must “set forth the specific facts showing that a triable issue of material fact exists.” (CCP § Summary judgment/adjudication is granted when a moving party establishes the right to entry of judgment as a matter of law. (CCP § 437c(c), (f)(1).)

Importantly, a moving defendant establishes a right to summary judgment by showing that the plaintiff lacks the evidence to sustain one or more elements of the causes of action pleaded. (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 756. See also *Aguilar*, 25 Cal.4th at 855.) Although summary judgment is no longer considered a “disfavored” procedure, the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.)

## **II. Evidentiary Objections**

### **A. Cross-Defendants’ objections to Declaration of Parvinder Singh (“Singh Decl.”)**

Cross-Defendants made 10 evidentiary objections to the Singh Decl. at ¶¶ 4, 6, 8, 9, 10, 12 (2 separate objections), 13, and 14 (2 separate objections). The objections are mainly lack of personal knowledge, lack of foundation, improper opinion, speculation, irrelevant, argumentative, and legal conclusion (or a combination of some of these.) The Court SUSTAINS these objections.

### **B. Cross-Defendants’ objections to exhibits attached to the Singh Decl.**

Cross-Defendants object to Exhibits A (¶16 pf Singh Decl.), F (¶15), G (¶16), H (¶17), I (¶18), and J (¶19) on grounds of insufficient authentication, lack of personal knowledge/foundation, and in some cases, hearsay. These objections are SUSTAINED.

## **III. Merits of Motion**

### **A. Background facts**

On or about May 17, 2022, Cluett consulted with Cross-Defendant Torres Agency regarding Cross-Complainant's upcoming renewal on May 20, 2022. (Defendant's Separate Statement of Undisputed Facts ("UMF") No. 1.) On or about May 20, 2022, Cross-Defendant Torres Agency submitted Cross-Complainant's application to Cluett. (UMF No. 2.) Cross-Defendant is informed and believes that Cluett is an agent for Accredited Specialty Insurance Company ("ASIC"). (UMF No. 3.) ASIC provided the subject insurance policy, and Cardigan General Insurance Services, LLC ("Cardigan General") was the broker communicating underwriting terms for ASIC. (UMF No. 4.) Further, Cross-Defendants are informed and believe that Cross-Complainant financed the insurance premium through First Insurance Funding. (UMF No. 5.)

Additionally, on or about May 18, 2022, Cardigan General issued an Insurance Quote, Quote #898.20 (A), to Cross-Complainant and Cross-Defendants. (UMF No. 6.) The Cardigan General Insurance Quote specifically states the following:

**"FOR DRIVERS 26 YEARS OLD TO 72 YEARS OLD: IN THE PAST 36 MONTHS, DRIVERS SHOULD HAVE NO MORE THAN A COMBINATION OF 3 OF THE FOLLOWING: A. SPEEDING..."** (UMF No. 7.)

Additionally, on or about May 18, 2022, Cluett issued an Insurance Quote, naming Cross-Defendant Torres Agency as the Producer and Cross-Complainant as the Insured. (UMF No. 8.) The Cluett Insurance Quote specifically states, "All Drivers MUST be Approved by Underwriting Prior to operating any of the Insured's Vehicles on this Policy. No outside Financing is allowed by this Program." (UMF No. 9.) Further, that Cluett "receives a commission on this policy and is assessing an additional fee as set forth above." (UMF No. 10.) Cluett's additional fees include Surplus Lines Taxes, Stamping Fees, and Cluett Fees. (UMF No. 11.) Due to the financing agreement and additional fees, Cross-Defendants did not have the authority to make payments on behalf of Cross-Complainant. (UMF No. 12.) Rather, Cross-Defendants would receive invoices from Cluett, on Cluett letterhead, and would channel payment from Singh to Cluett. (UMF No. 13.)

On or about May 19, 2022, Cross-Defendant's employee, Samantha Lopez, sent Cross-Complainant a list of drivers and vehicles to approve via DocuSign for the 2022 to 2023 term, which included Gonzalez, and Cross-Complainant approved the list. (UMF No. 14.) On or about May 20, 2022, Cross-Complainant and Cross-Defendants signed the insurance quotes issued by Cardigan General and Cluett, and Cross-Complainant signed the insurance application, including the list of active drivers for the 2022 to 2023 term. (UMF No. 15.) Thereafter, Cross-Defendant Torres Agency submitted the insurance application and list of drivers and vehicles to Cluett for approval. (UMF No. 16.)

Along with the application, Cross-Defendant Torres Agency was required to transmit Gonzalez's motor vehicle record for approval. (UMF No. 17.) The motor vehicle record reports three (3) violations: two for Exceeding 65 mph Maximum Limit and one for Unsafe Speed for Conditions. (UMF No. 18.)

On May 21, 2022, ASIC issued Policy Number: 2-CGI-CA-19-S0100854-00. (UMF No. 19.) The Policy expressly lists Joseph A. Gonzalez; however, Gonzalez was listed as an "Excluded or Unauthorized" driver. (UMF No. 20.)

On June 3, 2022, Kristin Losordo, on behalf of Cluett, emailed Cross-Defendant Torres Agency the following:

"After the Underwriter reviewed these Drivers MVRs, they are going to EXCLUDE the following 2 drivers... Joseph Gonzalez: 3 Speeding Violations – EXCLUDED. These 2 Drivers should NOT be operating any of the Insured's Vehicles Insured under Romana Medical Transportation. In

order for the Carrier to release the Policy Doc's, I will need the attached Driver Exclusion form signed and returned TODAY." (UMF No. 21.)

On June 7, 2022, Cross-Defendant Torres Agency responded to Losordo asking if Gonzalez could be included in the Policy if he completed driving school. (UMF No. 22.) On June 22, 2022, Marissa Fischer, on behalf of Cluett, wrote to Robert Kolon, at Cardigan General, asking for Kolon to approve Gonzalez as a driver. (UMF No. 23.)

On June 23, 2022, Kolon informed Fischer that Gonzalez could remain an approved driver under the issued policy number 2-CGI-CA-19-S0100854-00 if he (1) attends a defensive driving course and (2) pays a probationary charge of \$500. (UMF No. 24.) In bold letters, the email states: "This needs to be done before being added back." (UMF No. 25.) The same day, Cross Complainant agreed that Gonzalez "is agreed for \$500" and he would submit the defensive driving course soon. (UMF No. 26.)

General Change Endorsements were issued by Cardigan General throughout the Policy term, beginning on July 28, 2022. (UMF No. 27.) In each General Change Endorsement, Gonzalez is listed as an "Excluded or Unauthorized" driver. (UMF No. 28.)

On August 22, 2022, Natalie Podegracz, on behalf of Cross-Defendant Torres Agency, transmitted a General Change Endorsement to Cross-Complainant. (UMF No. 29.) Cross Complainant responded to Cross-Defendants that Gonzalez should be added on the Policy because he spoke with Fischer, who told him "they'll charge \$500 extra" to add Gonzalez. (UMF No. 30.) Podegracz immediately responded: "Per our conversation, in order for Joseph Gonzalez to be added back onto the policy, we are needing to retrieve the driver course completion document." (UMF No. 31.)

On December 10, 2022, Podegracz followed up with Cross-Complainant and reminded him that Gonzalez needs to submit his proof of completion of driving school so the carrier can consider adding him onto the Policy. (UMF No. 32.) Podegracz followed up with Complainant on December 12 and December 16, 2022. (UMF No. 33.) On December 16, Podegracz specifically informed Cross-Complainant that the "carrier is still needing the driver exclusion form (attached above) to be signed and returned as soon as possible. This form is stating that the carrier is not liable for any accidents or losses while a covered auto is driven by Joseph Gonzales." (UMF No. 34.) Podegracz additionally asked for proof of completion of Gonzalez's driving school. (UMF No. 35.) That same day, Cross-Complainant responded that he would request the proof of completion from Gonzalez, but that he "already paid extra \$500 for this driver," and he is "just waiting for defense driving test from him." (UMF No. 36.)

On December 23, 2022, Gonzalez was involved in an accident with Plaintiff, ADOLFO VILLA. (UMF No. 37.)

On December 27, 2022, Cluett informed Cross-Defendant Torres Agency that Gonzalez was never added to the Policy as the required documentation was not received. (UMF No. 38.)

On December 29, 2022, Gonzalez completed his defensive driving course with DriveSafe. (UMF No. 39.) On December 30, 2022, Cardigan General transmitted a General Change Endorsement adding Probationary Driver #16, Joseph Gonzalez, with a \$500 premium. (UMF No. 40.)

On April 2, 2025, Cross-Complainant filed a Cross-Complaint for Damages, asserting causes of action for Breach of Fiduciary Duty and Negligence against Cross-Defendants. (UMF No. 41.). On May 29, 2025, Cross-Defendants filed an Answer to the Cross-Complaint, asserting several affirmative defenses including assumption of risk. (UMF No. 42.)

## **B. Issues to be determined**

### **ISSUE NO. 1: Cross-Complainant cannot prevail on their cause of action against Cross-Defendants for breach of fiduciary duty.**

"The elements of a claim for breach of fiduciary duty are (1) the existence of a fiduciary relationship, (2) its breach, and (3) damage proximately caused by that breach." (*O'Neal v. Stanislaus Cnty. Employees' Ret. Assn.* (2017) 8 Cal.App.5th 1184, 1215.) Cross-Complainant's breach of fiduciary duty cause of action fails because there is no fiduciary relationship between an insurance agent and its client and there are no damages proximately caused by the alleged breach of such duty.

As noted by Cross-Defendants, "[i]nsurance brokers owe a limited duty to their clients." (*Pacific Rim Mech. Contractors, Inc. v. Aon Risk Services West, Inc.* (2012) 203 Cal.App.4th 1278, 1283; *Jones v. Grewe* (1987) 189 Cal.App.3d 950.) The court in *Jones* explained the limited duties normally owed to an insured as follows:

Ordinarily, an insurance agent assumes only those duties normally found in any agency relationship. This includes the obligation to use reasonable care, diligence, and judgment in procuring the insurance requested by an insured.

(*Id.* At 954.)

These duties are not fiduciary in nature but, rather, the normal duties owed an insured by its agent. Counsel for Cross-Defendants has located no case authority in California permitting an insured to sue its insurance agent for breach of fiduciary duty. (See, e.g., *Miniace v. Pac. Mar. Ass'n, Case No. C 04-03506*, 2005 U.S. Dist. LEXIS 40708, \*33 (N.D. Cal. Sept. 13, 2005) ("This Court will not expand the doctrine of fiduciary duty to include insurance brokers, given that it has not been recognized by California courts."))

Further, California case law unequivocally provides that an insurance broker does not owe a fiduciary duty to its insureds. The broker-client relationship "is not the kind which would logically give rise to" a fiduciary duty; the broker's duty, "by and large, is to use reasonable care, diligence, and judgment in procuring the insurance requested by its client." (*Kotlar v. Hartford Fire Ins. Co.* (2000) 83 Cal. App. 4th 1116, 1123; accord

*Hydro-Mill Co. v. Hayward, Tilton & Rolapp Ins. Assocs., Inc.* (2004) 115 Cal. App. 4th 1145, 1157–1159 (rejecting the attorney-client analogy as "wide of the mark" and holding a broker "only needs to use reasonable care".) Because even an insurer is not a fiduciary of its insured, neither is a broker. (*Id.* at 1158.) Eddy does not hold otherwise: its statement that an agency relationship carries "an obligation to use due care" describes a negligence duty, and the only actionable duty it recognized arose because the agent there "undertook to prepare an insurance proposal" and then failed to accurately inform the insureds of "the policy's provisions." (*Eddy v. Sharp* (1998) 199 Cal. App. 3d 858, 864–866 .)

No comparable misdescription occurred here. Cross-Defendants accurately conveyed both Gonzalez's exclusion and the exact conditions for his reinstatement. And Insurance Code section 1733—the only statutory "fiduciary" hook Cross-Complainant invokes—reaches the misappropriation of premium funds, not the placement or scope of coverage, and Cross-Complainant identifies no diverted funds.

Here, even if a fiduciary duty were established, Cross-Complainant cannot establish that the breach caused any damages, which is an essential element of the cause of action. This is because Cross-Complainant cannot dispute that two conditions were required to keep Gonzalez on the Policy. (UMF Nos. 24-26.) The underwriter's June 23, 2022, approval was expressly conditional: Gonzalez could remain an approved driver only if he (1) completed a defensive driving course and (2) paid a \$500 probationary premium, and these conditions "need[ed] to be done before being added back." (UMF Nos. 24, 25.) The underwriter required, as conditions precedent to Gonzalez being added back as an approved driver, payment of \$500 and completion of a defensive driving course before being added back. (*Id.*) Singh expressly accepted those conditions the same day. (UMF No. 26.)

In the Cross-Complaint, Cross-Complainant alleges that Cross-Defendants should have advised ASIC that Gonzalez should not have been excluded on the Policy. (XC ¶¶ 31, 34, and 39) As mentioned above, Cardigan General retains control of the approval process, and Cross-Defendants submitted the driver list that included Gonzalez. (UMF Nos. 4, 9, 14 -16.) Due to Gonzalez's motor vehicle record, Cardigan General excluded Gonzalez. (UMF No. 21.) When Gonzalez was excluded, Cross-Defendants communicated the express conditions needed to keep Gonzalez on the Policy. (UMF Nos. 24-26.) Cross-Complainant agreed to the conditions. (UMF No. 26.)

Defensive driving course. Here, Gonzalez was not an approved driver as of the accident because he had not satisfied the required defensive driving course condition. Here, it is undisputed that Gonzalez did not complete the defensive driving course until December 29, 2022. (UMF No. 39.) The accident occurred on December 23, 2022. (UMF No. 37.) Because the course was a condition to remaining on the insurance policy, and had to be satisfied before Gonzalez was added back, Gonzalez was not an approved driver on the date of the accident. (UMF No. 24-26, 37-39.) Gonzalez's failure to complete a defensive driving course was not caused by any acts or omissions by Cross-Defendants.

\$500 probationary premium. Cross-Complainant claims that Cross-Defendants failed to deduct the \$500 from Cross Complainant's account, but Cross-Defendants did not have the authority to remit payments due to the Premium Finance Agreement. (UMF No. 12.) Because Cluett receives a commission on the Policy and issues additional fees, such as Surplus Lines Taxes, Stamping Fees, and Cluett Fees, Cross-Defendants had to receive an invoice from Cluett prior to issuing payments. (UMF No. 13.) Cross-Defendants could not calculate Cluett's fees. (Id.)

Upon Gonzalez's completion of the driving course, Cardigan General transmitted a General Change Endorsement adding Probationary Driver #16, Joseph Gonzalez, with a \$500 premium. (UMF No. 40.) However, because Gonzalez completed the driving course after the accident, the \$500 premium was not invoiced until after the accident. (Id.)

Further, on August 22, 2022, Cross-Complainant informed Cross-Defendants that Cluett told Cross-Complainant they would charge \$500. (UMF No. 29.) On December 16, Cross-Complainant informed Cross-Defendants that he already paid \$500 for Gonzalez, and that he was just waiting for Gonzalez's defense driving course. (UMF No. 34.) This was one week before Gonzalez's car accident with Plaintiff. (UMF Nos. 34 and 37.)

Any alleged failure to deduct the \$500 from Cross-Complainant's account was not caused by any acts or omissions by Cross-Defendants because coverage could not be bound for Gonzalez absent prior completion of conditions and issuance of an invoice.

Causation and lack of coverage. Here, any alleged act or omission by Cross-Defendants did not cause the asserted lack of coverage because the unsatisfied course condition independently precluded Gonzalez' approval at the time of loss. Cross-Defendants could not bind Gonzalez to the Policy without underwriter approval, defensive driving course completion, and the \$500 probationary premium effective prior to any reinstatement. (UMF Nos. 4, 9, 24, and 25.) In any event, Cross-Complainant's causation fails as a matter of law: the defensive driving course requirement remained unmet as of the accident. (UMF Nos. 37 and 39.) The underwriter's approval required both conditions to be met before Gonzalez could be added back. (UMF Nos. 24 and 25.) Gonzalez had not completed the defensive driving course before the December 23, 2022, accident. (UMF Nos. 37 and 39.) This undisputed timing severs any causal link between Cross-Defendant's alleged conduct and the lack of coverage. No act or omission by Cross-Defendants could have created coverage for Gonzalez, so Cross-Complainant cannot prove proximate causation or damages as a matter of law.

Accordingly, the first cause of action fails as a matter of law.

## **ISSUE NO. 2: Cross-Complainant cannot prevail on their cause of action against Cross-Defendants for negligence.**

Cross-Complainant must establish four elements to prove a claim of negligence against Cross-Defendants for alleged failure to remit the \$500 probationary premium:

(1) Cross-Defendants' legal duty of care toward Cross-Complainant; (2) Cross-Defendants' breach of that legal duty to Cross-Complainant; (3) injury to Cross-Complainant proximately caused by the breach; and (4) damages to Cross-Complaint. (See *Jones v. Grewe* (1987) 189 Cal.App.3d 950, 954, 957.)

Cross-Defendants satisfied their duty to Cross-Complainant as a matter of law when they advised Cross-Complainant on the Subject Exclusion in the renewal and attempted to have ASIC remove that language from its renewal, and then presented Cross-Complainant's with the conditions that they needed to meet to reverse the exclusion. Further, to the extent Cross-Complainant alleges that Cross-Defendants did breach any duty to Cross-Complainant, it was not the cause of Cross-Complainant's alleged damages where Cross-Complainant failed to procure the defensive driving course for Gonzalez prior to the incident. Accordingly, the Court should enter summary judgment in favor of Cross-Defendants.

As noted by Cross-Defendants, whether a duty of care exists is a question of law for the Court. (Id. at pp. 954, 957.) Under California law, the duty of an insurance broker is generally limited to using "reasonable care, diligence, and judgment in procuring the insurance requested by an insured." (*Mark Tanner Constr., Inc. v. Hub Int'l Ins. Servs., Inc.* (2014) 224 Cal.App.4th 574, 584.) California courts have expressly restricted an insurance broker's duty by stating that it "does not include responsibility for ensuring the insured has adequate coverage to protect against all eventualities." (*Papers Savers, Inc. v. Nacsa* (1996) 51 Cal.App.4th 1090, 1095.) Rather, "the onus is ... squarely on the insured to inform the agent of the insurance he requires." (Id. at 1096.) This is true even when the insured has been purchasing insurance from his broker for several years, and has followed the broker's advice on insurance matters. (See *Wallman v. Suddock* (2011) 200 Cal.App.4th 1288, 1312-1313 - no breach of duty and no triable issue of material fact that insurance broker did not hold itself out as an insurance expert to impose a heightened duty to procure additional coverages); see also *Kotlar v. Hartford Fire Ins. Co.* (2000) 83 Cal.App.4th 1116, 1123 - insurance broker does not owe duty to provide notice to named insured of insurer's intent to cancel policy that was procured by the broker for nonpayment of premiums).

Cross-Defendants' met their duty to Cross-Complainant to use reasonable care, diligence, and judgment in procuring the insurance requested by Cross-Complainant. Once Cross-Complainant cited supposed concerns with the Subject Exclusion language, they were on notice of the coverage issue. Cross-Defendants attempted to have the exclusion language removed, and thereafter advised Cross-Complainant of the conditions to have the exclusion for Gonzalez reversed. Despite knowledge of the required conditions to obtain reversal of the exclusion, Cross-Complainant failed to obtain the defensive driving completion certificate before the occurrence of the incident.

Cross-Defendants did not have a heightened duty to foresee these claims and provide any advice or alternatives other than advising Cross-Complainant of the required conditions to add Gonzalez to the policy. Accordingly, the facts indisputably show that Cross-Defendants satisfied their insurance broker duties to Cross-Complainant, and likewise did not assume a heightened duty to Cross-Complainant as

matter of law. Therefore, the Court should enter summary judgment (or summary adjudication) on Cross-Complainant's negligence claim against Cross-Defendants.

As to causation, and as set forth above, Cross-Complainant's causation fails as a matter of law: the defensive driving course requirement remained unmet as of the accident. The underwriter's approval required both conditions to be met before Gonzalez could be added back. Gonzalez had not completed the defensive driving course before the December 23, 2022, accident. This undisputed timing severs any causal link between Cross-Defendant's alleged conduct and the lack of coverage. No act or omission by Cross-Defendants could have created coverage for Gonzalez, so Cross Complainant cannot prove proximate causation or damages as a matter of law.

In the Opposition, Cross-Complainant contend that Cross-Defendants "attack the wrong negligence theory," emphasizing a duty to procure requested coverage for Gonzalez and to accurately communicate any coverage shortfall at placement, which allegedly caused Singh to remain with the market and not seek alternatives. Cross-Complainant contend that by May 2022 Singh had specifically requested coverage for Gonzalez, signed an "Active Drivers" list including him, later rejected an exclusion, and relied on the Agency's undertaking to obtain a \$500/course exception to keep Gonzalez as an active driver.

To begin with, the recast theory is not in the present matter. The pleadings frame the issues on summary judgment, and "a party may not oppose a summary judgment motion based on a claim, theory, or defense that is not alleged in the pleadings." (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal. App. 5th 438, 444.) The Cross-Complaint pleads only that Cross-Defendants failed to remit the \$500 premium and failed to advise ASIC that Gonzalez should not have been excluded; it pleads no "negligent procurement" or "misleading communication" theory, and Cross-Complainant never moved to amend. "Evidence offered on an unpleaded claim, theory, or defense is irrelevant because it is outside the scope of the pleadings." (*Id.*) The Court may deny the Opposition on that ground alone.

Cross-Complainant' theory also fails on the merits. As noted earlier, California law sets a narrow duty for insurance brokers and agents. They must use reasonable care, diligence, and judgment to procure the coverage the insured requests, and "[t]he mere existence of such a relationship imposes no duty on the agent to advise the insured on specific insurance matters." (*Jones v. Grewe* (1987) 189 Cal. App. 3d 950, 954; *Kotlar v. Hartford Fire Ins. Co.* (2000) 83 Cal. App. 4th 1116 (reaffirmed in *Pac. Rim Mech. Contractors, Inc. v. Aon Risk Ins. Servs. W., Inc.* (2012) 203 Cal. App. 4th 1278 (2012).) It is the insured's responsibility to advise the agent of the coverage it wants; the law will not imply a broader duty that would make the agent "a blanket insurer for his principal." (*Jones, supra*, 189 Cal.App.3d at 957.)

Also, as discussed earlier, Cross-Complainant' fiduciary duty theory fails because California does not recognize a fiduciary relationship between an insurance agent and its insured.

Here, Cross-Complainant attempts to convert routine communications and follow-ups into a special advisory relationship. This also fails. The general no-further-duty rule changes "when— but only when—one of" three things happens: (a) the agent misrepresents the nature, extent, or scope of the coverage being offered or provided; (b) there is a request or inquiry by the insured for a particular type or extent of coverage; or (c) the agent assumes an additional duty by express agreement or by holding itself out as having expertise in the field of insurance sought. (*Fitzpatrick v. Hayes* (1997) 57 Cal. App. 4th 916, 927 ; accord *Murray v. UPS Cap. Ins. Agency, Inc.* (2020) 54 Cal. App. 5th 628, 643–644; *Mark Tanner Constr. v. Hub Internat. Ins. Servs.* (2014) 224 Cal. App. 4th 574, 584.)

However, merely naming Gonzalez on a renewal roster is not a "specific request for lacking coverage." (*Murray, supra*, 54 Cal. App. 5th at 641.) And the misrepresentation and failure-to-explain exceptions do not reach an agent who disclosed the coverage gap and the conditions to cure it; Jones itself distinguishes the requested-coverage and unexplained-exclusion cases on that basis. (*Jones v. Grewe, supra*, 189 Cal. App. 3d at 954–956.)

Cross-Complainant's "undertaking" theory cannot rewrite the underwriter's conditions or manufacture approval retroactively. Cross-Defendants did undertake to ask underwriting to reconsider, and they secured conditional terms, conveyed those terms verbatim, and followed up for the only missing item—proof of course completion. That is the careful execution of a limited broker role, not a basis to impose fiduciary obligations, expand duties, or fabricate approval.

Even if it did create an expanded duty, the causation element of insurance broker negligence claims presents a particularly acute application of the reasonable inference standard that Cross-Complainant fails to meet. As established in *Roger H. Proulx & Co. v. Crest-Liners, Inc.* (2002) 98 Cal. App. 4th 182, a party can recover on a professional negligence claim against an insurance broker only if it can show that, but for the broker's negligence, it would have had at least some coverage for the underlying claim. Without such a showing, there is no cause of action because there are no damages caused by the breach of the professional's duty. This mirrors the case-within-a-case requirement in legal malpractice actions.

*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal. 4th 826 established that evidence of possible motive, opportunity, and means—without more — allows only speculation, which is not evidence. Applied to broker negligence, a party who can only speculate that different coverage would have been available, or that the insured would have purchased it, cannot survive summary judgment. Here the record is silent: nothing shows that any insurer would have covered a driver with three speeding violations, so Cross-Complainant's "would have obtained other insurance" theory is impermissible speculation. (*Landeros v. Torres* (2012) 206 Cal. App. 4th 398, 412–413.)

Here, Cross-Defendants acted as the producer submitting Singh's application and driver list to the wholesale intermediary conveying underwriting terms for ASIC, and "all drivers MUST be approved by underwriting" before operating any covered vehicle. When underwriting excluded Gonzalez based on three speeding-related violations,

Cross-Defendants sought relief from that exclusion and relayed the precise conditions to reverse it: defensive driving course and a \$500 probationary charge, to be completed "before being added back." Those communications stayed within the broker's limited role and did not, and could not, bind coverage absent underwriter approval and satisfaction of stated conditions, which Cross-Complainant admittedly did not satisfy.

Cross-Complainant then concedes underwriting excluded Gonzalez based on his MVR with three violations, not because of a submission gap. That defeats any claim of negligent procurement. The record shows a negotiated, conditional path—defensive-driving course plus \$500—and Cross-Complainant did not complete it before the loss.

Finally, Cross-Complainant acknowledges the December 16 warning that no liability would apply while Gonzalez drove unless the conditions were met, and that he responded he believed the \$500 was paid but still lacked the certificate. Cross-Complainant's causation rests entirely on his own declaration about what he "would have done" months earlier—self-serving, speculative testimony that is inadmissible for the reasons stated in Cross-Defendants' concurrently filed Objections to Evidence and that cannot, in any event, manufacture a triable issue. (*Benavidez v. San Jose Police Dept.* (1999) 71 Cal. App. 4th 853, 860–862; *Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal. App. 4th 1078, 1087.) He took no action after the explicit December 16 warning before the December 23 crash.

Accordingly, the motion is granted as to the negligence claim.

First, as to the "Active Drivers" list and alleged ambiguity, Singh signed client-facing renewal materials listing drivers, including Gonzalez, while carrier-facing schedules consistently identified Gonzalez as "Excluded or Unauthorized" after underwriting review. The broker's duty is to convey underwriting decisions and seek requested changes with reasonable care. That occurred here.

Second, with respect to misrepresentation and reliance. On June 23, the underwriter agreed to consider Gonzalez if, and only if, he completed a defensive driving course and paid \$500, "before being added back," and Singh accepted those exact conditions the same day. From August through mid-December, Cross-Defendants repeatedly requested proof of course completion and warned that the carrier would not be liable for losses while Gonzalez drove until the conditions were met. Clear, accurate, repeated communications defeat any claim of misleading assurances or reasonable reliance to the contrary.

Third, as noted by Cross-Defendants, the \$500 remittance/payment-tracking argument is a red herring. Cross-Defendants lacked authority to deduct or remit premium without a Cluett invoice due to premium finance and fee structures; payment flowed upon invoicing by the wholesaler, not unilateral broker action. After Gonzalez completed the course on December 29, Cardigan issued a change endorsement on December 30 adding him as a probationary driver with a \$500 premium—confirming that invoicing followed satisfaction of conditions, not before.

Cross-Complainant sets forth a non-remittance theory. But even taking it at face value, it is immaterial. Coverage could not be bound without both (1) underwriter approval conditioned on completion of the course and payment, and (2) actual proof of course completion. Because Gonzalez had not completed the course by the accident date, the absence or timing of any \$500 transaction could not have caused the lack of coverage. The opposition's suggestion that later file questions about payment records create a triable issue does not overcome the independent, undisputed failure of the course condition.

**ISSUE NO. 3: Cross-Defendants prevail on their affirmative defense of Comparative Fault of Cross-Complainant as a matter of law AND ISSUE NO: 4: Cross-Defendants prevail on their affirmative defense of Assumption of the Risk by Cross-Complainant as a matter of law.**

A cross-complainant's cause of their own injury may be considered as a bar to their recovery to the extent of their comparative fault. (See, e.g. *Bradfield v. Trans World Airlines, Inc.* (1979) 88 Cal.App.3d 681, 686.) On the other hand, secondary assumption of the risk applies in situations where the defendant owes the plaintiff a legal duty to protect the plaintiff from a particular risk or harm, but the plaintiff proceeds to encounter the risk imposed by the defendant's breach of duty. (See *Knight v. Jewett* (1992) 3 Cal.App.4th 296, 308-309; see also *Ordway v. Superior Court* (1988) 198 Cal.App.3d 98, 102, citing *Rudnick v. Golden West Broadcasters* (1984) 156 Cal.App.3d 793, 798-799 - "Reasonable implied assumption of risk is the inferred agreement to relieve a potential defendant of a duty of care based on the potential plaintiff's reasonable conduct in encountering a known danger. A second variety of implied assumption of risk is labeled unreasonable.").

As noted by Cross-Defendants, while the *Knight* case and subsequent authorities mainly deal with a physical injury and a sport or recreational activity, Cross-Defendants have two affirmative defenses that can be decided on summary judgment: (1) that Cross-Complainant was completely at fault as a matter of law; and (2) that Cross-Complainant assumed the risk as a matter of law when they were informed of the conditions to have Gonzalez added back to the policy as an approved driver, yet failed to meet one of the conditions prior to Gonzalez being involved in the incident.

Here, under the same facts set forth above, where Cross-Defendants satisfied all duties to Cross-Complainant, did not assume a heightened duty, and did not cause Cross-Complainant's alleged damages, Cross-Complainant's own negligence was a 100% cause of their alleged damages. Therefore, Cross-Complainant's impliedly assumed the risk of Gonzalez being involved in an incident where he would not be covered by allowing him to use their vehicles prior to his completion of the defensive driving course.

In the Opposition, Cross-Complainant' contend comparative fault and assumption of risk are jury questions given earlier procurement and payment-tracking issues. Cross-Complainant's own framing concedes explicit pre-loss warning and noncompletion—the dispositive causation facts. Without causation, comparative-fault balancing is immaterial.

Here, Cross Complainant acknowledges the December 16 warning, continued driving before completion, and that coverage attached only after completing the course/certificate and payment post-loss. The driver was added only after satisfying conditions, not before the accident. No triable issues remain; judgment should be entered. The dispositive causation failure warrants summary judgment

**3.**

| CASE #      | CASE NAME                                       | HEARING NAME                                     |
|-------------|-------------------------------------------------|--------------------------------------------------|
| CVRI2600639 | BARBA vs RIVERSIDE<br>COUNTY FIRE<br>DEPARTMENT | DEMURRER ON COMPLAINT FOR<br>MEDICAL MALPRACTICE |

**Tentative Ruling:**

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 67.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Where the dates alleged in the complaint show the cause of action is barred by the statute of limitations, a general demurrer lies. (*Saliter v. Pierce Bros. Mortuaries* (1978) 81 Cal.App.3d 292, 300.)

**I. Professional Negligence**

Defendant Cal Fire argues the Complaint fails to identify a statutory basis for liability and, therefore, fails as a matter of law. (Gov. Code §815(a).) Section 815(a) states, except as otherwise provided by statute, “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” Defendant is correct the Complaint does not allege any statutory basis for Cal Fire’s liability, meaning the demurrer should be sustained.

In Opposition, Plaintiff argues Health & Safety Code §1799.107 only provides qualified, and not absolute, immunity to Cal Fire. Health & Safety Code § 1799.107 provides that “a qualified immunity from liability shall be provided for public entities and emergency rescue personnel providing emergency services.” (Health & Safety Code § 1799.107(a).) “For purposes of this section, it shall be presumed that the action taken when providing emergency services was performed in good faith and without gross negligence.” (Health & Safety Code § 1799.107(c).) Under California law, “gross